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Constitutional choices and Tamil politics – Part 1



Devanesan Nesiah

on 09/27/2017 09/29/2017

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In his articles in The Island of [Wednesday 20th](#) and [Thursday 21st September](#) 2017, Dr Dayan Jayatilaka starts by asking the correct question, provides a correct answer and goes on to identify the critical challenges in formulating a new Constitution. Dayan does not, as so many others do, mindlessly reject the need for a new Constitution or any radical amendment to the existing one. Instead, he prescribes limits to what could be included in such a constitution or an amendment. These limits are based on his identification of what he describes as three types of Sri Lankan Separatists. It is such identification that I have problems with. Though he does not say so explicitly, he seems to concede that every form of internal self-determination or regional autonomy could conceivably be a step towards a totally deferent outcome, viz external self-determination or secession. The LTTE never made this mistake – that is why they opposed every form of internal self-determination or regional autonomy. They knew it would be a barrier to secession which has always been their only goal. But separation has never been viable, and those groups that sponsored it have been eliminated. Overall, I am largely in agreement with what Dayan has written.

To the best of my knowledge, even the most ardent federalist within the Tamil political leadership never favored secession, nor insisted on the degree of devolution that exists in the USA, Canada, Switzerland, and many other countries. The [Vaddukoddai revolution](#) must be seen as largely an expression of despair on the part of the political leadership and of its exploitation by armed Separatists, particularly the LTTE. Of the countries listed above, Canada had a secession problem till about three decades ago, but no longer. Many countries have broken up, such as the USSR, but not on an account of excessive devolution. In fact in several cases it is for lack of devolution as in Pakistan and East Europe. As a rule, federalism and devolution help to keep united countries that would, otherwise have separated. This is certainly true of India, with the sole exception of Kashmir. Kashmir is a problem, created by British imperialism at the time of Independence of India and Pakistan.

Any secession in Sri Lanka will have a deadly domino effect on India. Kashmir apart, every separatists movement in India, and there were many, has dissipated or diminished in intensity. This development has been accelerated by increased devolution within India as well as by the Supreme Court ruling in the [Bommai case relating to the dissolution of the Karnataka State Assembly](#), that the Indian Government, long regarded as quasi-federal, is essentially federal. That remarkable judgement reinstated the Karnataka State Assembly dissolved a year earlier as well as the Bommai administration of Karnataka. This bold and far-reaching judgement dramatically limits the powers of the center over the province and, in the process, took on the powerful Indira Gandhi who continued to be Prime Minister of India. That such a judgement was possible reflects well on the quality of the Judiciary of India.

Indira Gandhi's support for a few Tamil militant groups who then claimed to be fighting for secession was clearly to teach a lesson to President J.R. Jayewardene and Prime Minister Premadasa who had both insulted her. Neither Indira nor the Indian establishment would have permitted secession in Sri Lanka under any circumstances. The extent of support of militant groups was clearly calculated to harass J.R. and Premadasa while ensuring, that the militants were in no position to secure secession. Even if by some unimagined accident of history the narrow sliver of land to the North-East of Sri Lanka formed an independent government, that state would not have lasted more than a few days. No country anywhere would have defied India and recognized or helped to defend that state. This has been well understood by every political group of any consequence in Sri Lanka, India and the global Tamil diaspora. Even the political leaders who claimed to support the Vaddukoddai resolution clearly did not believe in or even want secession because very soon after the Vaddukoddai resolution they accepted and cooperated with the operation of the DDC bill which did not provide even a significant fraction of the devolution offered in the Bandaranayake-Chelvenayakam pact or the Dudley-Chelvenayakam pact or other arrangements negotiated subsequently. I am personally aware of this because I was involved in the decision making leading to my accepting the office of Secretary/ District Ministry, Secretary/DDC and Government Agent of Jaffna in 1981. Both Indira Gandhi's support to the militants and the Vaddukoddai resolution that preceded it would have proved to be wholly disastrous for the Tamil people of Sri Lanka.

Prof A.J. Wilson and Dr Neelan Tiruchelvam met me a year earlier to ask if I would accept my proposed appointment in Jaffna. I responded by expressing my reservation because the DDC bill had been emasculated of all significant devolution and those powers were transferred to the District Ministers who were appointed precisely to undermine the DDCs. Wilson and Neelan agreed with me but mentioned that the Jaffna DDC would be regarded as the lead institution and, if it worked well, the DDC bill would be amended to provide greater devolution. I told them that I don't believe it and asked them if they did. They replied that they had reservation too but, apart from the carrot of more devolution, there was also a stick. J.R. had told them he got information of a plan towards an island-wide anti-Tamil pogrom and that continuing close relationship between the national leadership and the Tamil leadership would be the way to avert such a disaster. I then agreed to accept the appointment.

I was installed in that office soon after the burning of the Jaffna Public Library in 1981 by police and thugs brought into Jaffna mostly from Kurunegala, by Ministers Cyril Mathew and Gamini Disanayake to help to rig the Jaffna DDC elections and to commit such violence as deemed necessary. The rigging of the Jaffna DDC election failed due to incompetence on the part of those assigned to do it, but they burnt down the Jaffna Public Library with over 90 thousand books and documents, many of them irreplaceable. They also did some killings and attempted to kill V. Yogeswaran, M.P. for Jaffna. This was the state of Jaffna when I took office in June 1981.

I was involved, together with DDC Chairman Mr. Nadarajah and fellow public officer S. Sivathasan, in my official capacity, in negotiation for more power to the DDC, which I will discuss in part II. Those negotiations not only unraveled, but led to most unforeseen developments in my career.

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